EXECUTIVE ORDER

DEPT. OF STATE
MAR 10 1925
DIVISION OF PUBLICATIONS

AUTHORIZING THE ALIEN PROPERTY CUSTODIAN TO SELL CERTAIN PROPERTY UPON THE NEW YORK STOCK EXCHANGE

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By virtue of the authority vested in me by an act of Congress entitled "An act to define, regulate, and punish trading with the enemy and for other purposes", approved October 6, 1917, known as the "Trading with the Enemy Act", and the amendments to such Act embodied in "An act making appropriations to supply urgent deficiencies in the appropriations for the fiscal year ending June 30, 1918, and prior fiscal years on account of war expenses and for other purposes", approved March 28, 1918, and the amendment to such act embodied in "An act making appropriations to supply deficiencies in appropriations for the fiscal year ending June 30, 1919, and prior fiscal years on account of war expenses, and for other purposes", approved November 4, 1918, and all other amendments thereto, to make certain orders such as that herein contained, I hereby, in the public interest, make the following determination, order, rule and regulations

The Alien Property Custodian is hereby authorized to sell upon the New York Stock Exchange, at such time as to him or to his authorized agent may seem advisable, without public or other advertisement, Three thousand (3000) shares common stock of the American Locomotive Company, incorporated under the laws of the State of New York, of no par value, which said shares were heretofore required to be conveyed, transferred, assigned and delivered to the Alien Property Custodian as the property of Wiener Bankverein, Vienna, Bernhard Elkan, Julius Elkan, Behrens & Herman, Knauth Nachod & Kuhne, and Ludwig Rosauer.

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My reasons for the foregoing determination and order are:

First: That there has been such a variation in the earnings applicable to the common stock of the corporation over a period of several years as to preclude its classification as a proper investment for trust funds.

Second: That the sale of the said stock and the investment of the proceeds in Liberty Bonds or Certificates of Indebtedness of the United States Government would insure a fair income upon the investment and conserve the principal, preventing possible depreciation by reason of a decline in the market price.

Third: That the sale of the said stock will result in the realization in tangible form of a great increase in principal by virtue of the appreciation of the market value of the stock since its original purchase, and since its seizure by the Alien Property Custodian.

Fourth: That a public or other advertisement of the sale of the said stock or attempted sale at auction would be a useless formality involving unnecessary expense and inconvenience and would cause such a delay as to imperil the realization of a price equal to that now prevailing on the open market.

Calvin Coolidge

THE WHITE HOUSE,
~~February~~ March 9, 1925.

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